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Automated License Plate Readers (ALPRs)

465.1 PURPOSE AND SCOPE

Automatic License Plate Recognition (ALPR) is a computer-based system that utilizes special cameras to capture a color image, as well as an infrared image, of the license plate of a passing vehicle. The ALPR system is used when there is a legitimate and specific law enforcement reason for identifying a vehicle for the purpose of protecting public safety, conducting criminal investigations, or ensuring compliance with local, state, and federal laws.

465.2 DEFINITIONS

(a) Criminal Investigation -An investigation based on reasonable suspicion to determine if a crime has been, is in the process of being committed or will be committed.

(b) Hot List - An informational data file which contains information on stolen or wanted vehicles as well as vehicles associated with AMBER alerts, missing or wanted subjects and other agency-defined information as part of a criminal investigation. Hot lists can be generated by local, state, and federal law enforcement agencies, including the National Crime Information Center (NCIC).

(c) ALPR Cameras -Can be mobile (mounted on vehicles) or on fixed positions such as freeway overpasses or traffic signals. ALPR systems mounted have all the necessary equipment to scan plates, notify the user of a vehicle hit, and upload the "Plate Scan" information into an ALPR Repository for retention and research.

(d) Optical Character Recognition {OCR)-Technology used by an ALPR to convert an infrared image into a text file for comparison with other data files (Hot List).

465.2.1 GUIDELINES

Law Enforcement use of the ALPR systems is limited by 41-6a-2003 to:
(a) Apprehend an individual with an outstanding warrant;
(b) Locate a missing or endangered person;
(c) To enforce motor carrier laws, or
(d) To locate a stolen vehicle, or

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(e) As part of an active criminal investigation.
(f) Deputies will not run ALPR data prior to, or during a traffic stop unless reasonable suspicion can be articulated for an active criminal investigation.
(g) Any time ALPR data is used, written documentation and a case number must be completed.

465.3 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. [Department/Office] personnel shall not use or allow others to use the equipment or database records for any unauthorized purpose.

(a) An ALPR shall only be used for official and legitimate law enforcement business (Utah Code 41-6a-2003).

(b) Particular consideration should be given to using ALPR-equipped vehicles to canvass areas around homicides, shootings, and other major incidents that qualify for use of an ALPR. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

(c) No member of this [department/office] shall operate ALPR equipment or access ALPR data without first completing [department/office]-approved training.

(d) If practicable, the deputy should verify an ALPR response through the appropriate law enforcement database before taking enforcement action that is based solely upon an ALPR alert.

(e) No ALPR operator may access confidential [department/office], state, or federal data unless otherwise authorized to do so.

465.3.1 LIMITATIONS ON USE

ALPR data shall only be used for the following official law enforcement business (Utah Code 41-6a-2003):

(a) As part of an active criminal investigation as defined by Utah Code 41-6a-2002

(b) To apprehend an individual with an outstanding warrant

(c) To locate a missing or endangered person

(d) To locate a stolen vehicle

An ALPR system may be used to access the Utah Criminal Justice Information System to verify vehicle registration or insurance information, confirm vehicle identification, or identify a stolen vehicle (Utah Code 41-6a-2003).

465.4 ALPR DATA RETENTION AND PRIVACY

a) The retention period for all ALPR scanned data will be according to the Automatic License Plate Reader System Act within Utah State Law.

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{b) ALPR data will be purged unless it is subject to a preservation request or disclosure order under §41-6a-2005 or a warrant. The data will be destroyed as soon as reasonably possible in an unrecoverable manner at the end of the 9-month retention period authorized by 41-6a-2004{1){c).

{c) If subject to a preservation request, disclosure order or warrant, the applicable data shall be downloaded and provided to the investigating agency.

(d} The Department shall preserve aggregate captured plate data for planning and statistical purposes for five years and may disclose aggregate anonymized data upon request consistent with Government Records Access and Management Act, Automatic License Plate Reader System Act, and Grand County Sheriff's Office Policy.

{e) Data will be safeguarded and protected by both procedural and technological means.

(f) All non-law enforcement requests for access to stored ALPR data shall be referred to the Department Records personnel and processed in accordance with Utah law.

(g) ALPR system audits should be conducted on a regular basis.

(h) Any breach of stored information will be disclosed to the SIAC Privacy Officer and/ or affected party.

465.4.1 NON-GOVERNMENTAL AGENCY ALPR

ALPR data captured by a non-governmental agency device may only be obtained pursuant to a warrant or a court order (Utah Code 41-6a-2005).

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465.5 ACCOUNTABILITY

All data will be closely safeguarded and protected by both procedural and technological means. The Grand County Sheriff's Office will observe the following safeguards regarding access to and use of stored data:

(a) All ALPR data downloaded to the mobile workstation and server shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date, and time.

(b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relate to a specific criminal investigation or [department/office]-related civil or administrative action.

(c) The number of ALPR data searches conducted by members as well as the crime type and incident numbers associated with each search shall be recorded and preserved for at least five years (Utah Code 41-6a-2005).

(d) ALPR system audits should be conducted on a regular basis.

465.6 POLICY

The policy of the Grand County Sheriff's Office is to utilize ALPR technology to capture and store digital license plate data and images while recognizing the established privacy rights of the public.

All data and images gathered by the ALPR are for the official use of this [department/office]. Because such data may contain confidential information, it is not open to public review.

465.7 RELEASING ALPR DATA

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

(a) The agency makes a written request for the ALPR data that includes:

1. The name of the agency.
2. The name of the person requesting.
3. The intended purpose of obtaining the information.

(b) The request is reviewed by the Administrative Services Chief Deputy or the authorized designee and approved before the request is fulfilled.

(c) The approved request is retained on file.

Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy.

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465.8 PUBLIC ACCESS

This policy and any special use permits obtained for stationary ALPRs shall be published on the County website or on the Utah Public Notice Website if the [Department/Office] does not have access to a County website (Utah Code 41-6a-2003; Utah Code 72-1-212).

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